

to represent plaintiff, and whether (and how) plaintiff is going to continue to litigate the case, before we can fairly ask her or any of the other parties to proceed to full consideration of any of the substantive matters now before the Court.

There are three summary judgment motions on today's calendar, two of which were only belatedly added onto this calendar. Plaintiff, however, has sought to continue those motions because she asserts she needs some still-pending discovery in order to respond to them. Her own motion to compel the discovery she says she needs for that purpose is calendared for June 17.

There is also a motion to file under seal. Two related motions to file under seal, however, have been noticed for April 29, coinciding with a CMC set for that date. Even absent other concerns, the summary judgments should await ruling on the motions to seal.
(4/15/2026 Minute Order.)

At this time, the motions to seal have been resolved on April 29, 2026, the motion to withdraw as counsel has been resolved on June 17, 2026, and the motions to compel have been resolved as the proposed order granting the motions was executed by this Court on July 10, 2026.

On July 13, 2026, Plaintiff filed a declaration stating that the discovery that this Court compelled has not yet been obtained and asking that the Court continue the instant MSJ hearing of July 22, 2026, "under Code of Civil Procedure section 437c(h) until the court-ordered discovery is produced and reviewed. . ." (Declaration of Michelle Daly, ¶¶ 5, 7.) As the Court's initial continuance would mean nothing without the compelled discovery being produced and reviewed, the Court will further continue the MSJ hearing.

The Court hereby continues the MSJ hearing for this matter until **September 16, 2026**, at 9:00 a.m., in Department 16, with the supplemental opposition due **August 26, 2026**, and the supplemental reply due **September 4, 2026**. This should be enough time for the Defendants to produce the discovery that has been compelled and for it to be reviewed by Plaintiff and her expert. If these dates are not suitable for the parties, they may contest this tentative and appear to further discuss continuance options.

7. 9:00 AM CASE NUMBER: C23-02216
CASE NAME: GEROSKA GAY VS. PREMIUM RETAIL SERVICES, INC.
***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**
FILED BY: GEROSKA GAY

TENTATIVE RULING:

Summary

Plaintiffs Geroksa Gay, Patricia Young, Philip Jackson and Vanessa Martinez, ("Plaintiffs") individually and on behalf of all others similarly situated, seek approval of a class and representative action settlement agreement with Defendants Premium retail Services, LLC, et. al., Premium Retail Services, Inc., and Ezat Rahimi, et. al. (Premium). This motion is unopposed and is **granted** as set forth herein.

No appearance is required at the hearing on July 22, 2026.

Background and Settlement Terms

This settlement arises from three related actions filed by Plaintiffs against Premium, alleging that Premium unlawfully failed to reimburse business expenses and pay all wages due to non-exempt, hourly employees in the "Representative" job classification in California, including overtime, vacation, sick pay, commissions, premium wages for missed meal and rest breaks, and waiting time penalties, and issued inaccurate wage statements in violation of the California Labor Code. The cases were initially filed separately between June and September 2023 in Contra Costa County Superior Court (Case No. C23-1599), the Southern District of California (Case No. 3:23-CV-01515), and Santa Clara County Superior Court, and were subsequently consolidated through stipulation of the Parties. See generally Piazza Decl., Exhibit A (Settlement Agreement).

Prior to commencing the actions under the Private Attorneys General Act ("PAGA"), Plaintiffs provided written notice to the Labor and Workforce Development Agency ("LWDA") and to Defendant of the specific Labor Code provisions alleged to have been violated; the LWDA did not provide notice of its intent to investigate. Plaintiffs therefore became authorized to commence civil actions to recover civil penalties under PAGA on behalf of the State of California and Aggrieved Employees. Piazza Decl. ¶ 19. The Settlement Class is defined as all non-exempt, hourly employees who fall under Defendant's Representative job classification in California from June 13, 2022, through September 26, 2024, comprising approximately 4,412 employees. Agreement ¶ 1.1.

Following extensive informal discovery, including Defendant's production of voluminous electronic and hard-copy time data, pay data, GPS coordinates, class size and workweek information, and hourly rates, the Parties engaged independent economic experts and performed detailed damages analyses over several months. Piazza Decl. ¶ 23. On September 26, 2024, the Parties participated in a full-day mediation with respected wage and hour mediator Michael E. Dickstein, Esq., followed by protracted arm's-length negotiations, culminating in the execution of a long-form Settlement Agreement on April 28, 2025.

The Court preliminarily approved the Settlement on November 19, 2025, following a modification regarding unclaimed funds, which shall be transmitted to the California Controller's Unclaimed Property Fund pursuant to Code of Civil Procedure section 384(b). Piazza Decl. ¶¶ 29, 76. The Settlement Administrator, Apex Class Action, mailed the Class Notice to 4,412 Settlement Class Members on December 18, 2025, advising them of their right to object, request exclusion, and appear at the Final Approval Hearing. Nava Decl. ¶¶ 4, 9, Exhibit A. Apex performed skip-tracing for 434 returned notices, successfully locating updated addresses for 267 individuals, resulting in successful delivery to approximately 96.21% of the Class. Nava Decl. ¶ 10. As of the Response Deadline, the Settlement Administrator received zero objections and zero requests for exclusion from the Settlement. Nava Decl. ¶¶ 11–12.

The Settlement provides for a non-reversionary Gross Settlement Amount of \$3,000,000.00, to be

funded by Defendant within twenty calendar days after the Effective Date. Agreement ¶¶ 1.22, 4.3. From the Gross Settlement Amount, the Settlement deducts: (1) attorneys' fees of \$1,000,000.00 (one-third of the Gross Settlement Amount); (2) litigation expenses not to exceed \$65,000.00 (currently totaling \$61,693.53); (3) Class Representative Service Payments of \$10,000.00 to each Named Plaintiff (\$40,000.00 total); (4) Settlement Administration Costs of \$34,990.00 to Apex Class Action; and (5) PAGA Penalties of \$150,000.00. Agreement ¶ 3.2.2; Piazza Decl. ¶ 76, Exhibit 1; Bibiyan Decl. ¶ 16, Exhibit 3; Kim Decl. ¶ 24, Exhibit 4. Defendant has agreed to pay the employer's share of payroll taxes separately. Agreement ¶ 1.22.

The Net Settlement Amount available for distribution to Participating Class Members totals approximately \$1,747,500.00. Participating Class Members shall receive pro rata payments based on the number of workweeks worked during the Class Period, with each workweek equal to one settlement share. Agreement ¶¶ 1.42, 3.2.4. Of the \$150,000.00 allocated for PAGA Penalties, seventy-five percent (\$112,500.00) shall be paid to the LWDA, and twenty-five percent (\$37,500.00) shall be distributed to Aggrieved Employees (those Class Members who had at least one PAGA Pay Period) as pro rata shares based on the number of PAGA Pay Periods worked during the PAGA Period. Agreement ¶¶ 1.36, 3.2.7.

Upon the Effective Date, Named Plaintiffs shall release all claims outlined in Paragraph 6.1 of the Settlement Agreement; Participating Class Members who are not Aggrieved Employees shall release claims per Paragraph 6.2; and Participating Class Members who are also Aggrieved Employees shall release claims per Paragraph 6.3. Agreement ¶ 6. The Settlement has been well-received by the Class, with no objections or exclusions received, and represents a fair, reasonable, and adequate resolution of the claims considering the risks of litigation and the substantial relief obtained for the Class.

Analysis

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First,

public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, \$1,000,000.00, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.)

Counsel prepared a lodestar fee estimate, estimating \$705,269.50, based on 1,007.6 hours, at rates between \$485-935 per hour. This results in an imputed multiplier of 1.42. The Court finds that the proposed fees are reasonable, given the risks inherent in these representative actions. Litigation costs not to exceed \$65,000 are reasonable and are approved. Settlement administration costs not to exceed \$34,990.00 are reasonable and are approved.

The requested representative payment of \$10,000 for each representative plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Considering all of the factors, particularly the size of the settlement, the full requested payment is approved.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate.
2. The motion is **granted**.
3. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
4. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
5. Plaintiffs’ counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of this hearing, and is ordered to submit a compliance

statement one week before the compliance hearing date.

6. Five percent (5%) of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

No appearance is required at the hearing on July 22, 2026.

8. 9:00 AM CASE NUMBER: C23-02401

CASE NAME: KIARA ROSS VS. KOTLIER ERNEST M.

HEARING ON DEMURRER TO: CROSS COMPLAINT

FILED BY: GARDEN COURT APARTMENTS, LLC

TENTATIVE RULING:

Before the Court is a demurrer by cross-defendants Doug Smith, Fuller Properties, LLC, and 21 other entity cross-defendants to the cross-complaint by Sequoia Equities, Inc. and Alder Creek Management, Inc.. For the reasons set forth, the hearing on the demurrer is continued to **1:30 p.m. on August 26, 2026**. The parties shall meet and confer in good faith by telephone, by videoconference, or in person **by August 10, 2026**, and the demurring parties shall file a supplemental declaration attesting to their compliance with this order **by August 14, 2026**.

Inadequate Meet and Confer

Code of Civil Procedure section 430.41(a) requires the party intending to file a demurrer to meet and confer with the party whose pleading is being challenged in person, by videoconference, or by telephone at least five days prior to the deadline for filing the demurrer and to file a declaration attesting to the parties' compliance with the requirement. (Code Civ. Proc. § 430.41(a) and (b).) A meet and confer through the exchange of letters or emails does not satisfy the meet and confer requirements of Code of Civil Procedure section 430.41.

In support of the demurrer, cross-defendants filed a declaration of counsel, Mr. Rupprecht, which attaches an exchange of letters between counsel regarding the grounds for demurrer and the reasons the cross-complainants contend the grounds lack merit, and addressing the parties' obligation to meet and confer in accordance with the Code. (Rupprecht Decl. Exhs. B and C.) In his November 4, 2025 letter, Mr. Rupprecht advised counsel for the cross-complainants that he was going to be starting a court trial on November 10, 2025 and that he would have limited availability "until the end of the month." (Rupprecht Decl. Exh. B.) Counsel for cross-complainants responded by letter dated November 7, 2025 and invited Mr. Rupprecht to provide dates and times when he would be available to conduct the meet and confer, given Mr. Rupprecht's trial. (Rupprecht Decl. Exh. C ["Given your professed limited availability, I would ask you to provide us your dates and times of availability in the coming week."].)

Mr. Rupprecht does not declare that he responded to that letter with dates and times when he was available. Rather, by implication, he acknowledges there was no call, videoconference, or in person meet and confer before he filed the demurrer more than a month later on December 12, 2025, as he states that the parties did not "arrange" a meet and confer phone call before he filed the demurrer, but that he "intends to meet and confer by telephone before Cross-Complainants' opposition would be due." (Rupprecht Decl. ¶ 20.) Mr. Davidson declares in his declaration in opposition to the demurrer that his office never received a response to the November 7, 2025 letter, and that Mr.